

Court No. - 21

Case :- WRIT - C No. - 48575 of 2014

Petitioner :- Ved Prakash Prop. M/S Karan Aqua And Ice

Respondent :- President U.P. Elec. Niyamak Aayog And 2 Others

Counsel for Petitioner :- Satyam Narayan

Counsel for Respondent :- Nripendra Mishra

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Vivek Kumar Birla,J.

Heard learned counsel for the petitioner and Sri Nripendra Mishra for the respondent no. 3.

The petitioner has come up praying for a mandamus only to decide his representation against the decision taken by the respondent and as indicated in the order of the Consumer Forum dated 8.5.2014.

Sri Nripendra Mishra submits that the regulatory commission has no role to play in the matter and it is only the Ombudsman as provided under Clause 7.10 of the Electricity Supply Code, 2005 that any grievance can be raised.

Consequently, we dispose of this writ petition with liberty to the petitioner to file a application before the Ombudsman under the aforesaid provision. In case, such an application is filed, the Ombudsman shall proceed to dispose of the claim of the petitioner expeditiously preferably within a period of three months' from the date of production of a certified copy of this order before him.

Order Date :- 10.9.2014

Lalit Shukla